

2:00PM LINE 9

25-CIV-09818

PETER BURJANEC VS. META PLATFORMS INC.

PETER BURJANEC
META PLATFORMS INC.

DAVID T. WANG
SHARDE T SKAHAN

Plaintiff's Motion for Leave to File First Amended Complaint; Request for Monetary Sanctions

TENTATIVE RULING:

Plaintiff Peter Burjanec's Motion for Leave to File First Amended Complaint and Request for Monetary Sanctions is **GRANTED in part**.

Attorney of record for Defendant Meta Platforms, Inc., Shardé T. Skahan, is **ORDERED TO APPEAR** to explain why Meta's memorandum of points and authorities in support of its opposition states that *Fall River v. Superior Court* (1988) 206 Cal.App.3d 431 (*Fall River*) involved a "den[ia] [of] joinder where the factual divergence between claims was too great" (Sept. 2, 2026 Memo. of Points & Auths. iso Opposition (Opp.), at p. 7:25-26) when the case did not involve any issue of joinder but instead the improper denial of a motion for judgment on the pleadings made on the basis that the plaintiffs had failed to comply with the Government Claims Act because the challenged cause of action "patently attempt[ed] to premise liability on an entirely different factual basis than what was set forth in the tort claim." (*Fall River, supra*, at p. 435).

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code Civ. Proc., § 473, subd. (a); see *id.*, § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. [citations] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428, citations omitted.) "With respect to the amendment of pleadings, there has developed in this state a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576, superseded by statute on other grounds, see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, .)

Here, plaintiff Peter Burjanec seeks to file an amended complaint that adds Umar Butt as an additional plaintiff, because Meta has refused to stipulate to the amendment. Burjanec and Butt allege that they held the same position; were on the same team; reported to the same supervisor who acted against them due to her anti-male animus; reported to the same skip-level manager; were fired in the same pretextual reduction-in-force layoff based on the same pretextual 'low performer' rationale; were subjected to the same defamatory statements made by Meta's

officers; and seek to assert the same causes of action. (See May 27, 2026 Declaration of David T. Wang, ¶¶ 5–6, exh. 2; see also Dec. 16, 2026 Complaint, *passim*.)

Butt’s addition to the present lawsuit is permitted by Code of Civil Procedure, section 378. That statute allows multiple plaintiffs to join in one action if either (1) “[t]hey assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) [t]hey have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action.” (Code Civ. Proc., § 378, subd. (a).) Section 378 “*should be liberally construed, unless expressly forbidden, to the end that a multiplicity of suits may be prevented.*” (*Petersen v. Bank of America Corp.* (2014) 232 Cal.App.4th 238, 249.) “Consistent with this presumption in favor of joinder, a right to relief arises from the same transaction or occurrence under section 378 so long as there is *any factual relationship* between the claims joined.” (*Smith v. Superior Court* (2026) 121 Cal.App.5th 607, 619, quotation marks omitted.)

In its Opposition, Meta focuses most of its argument on the particular differences between Burjanec’s and Butt’s cases while attempting to distinguish the similarities. While the two sets of claims will require some different evidence to prosecute or defend against, they will also involve much of the same facts and evidence. Plaintiffs allege that they were both fired by the same supervisor, from the same position, due to the same discriminatory and retaliatory animus, based on the same pretext of their unsatisfactory performances. Burjanec and Butt allege that their respective employments were terminated the *very same day* as part of a *single initiative* to terminate purported ‘low performers’— which involves at least one question of fact common to them, such that amendment of the Complaint to join Butt as an additional plaintiff is proper.

The motion is also timely. Burjanec’s and Butt’s counsel sought Meta’s agreement to an amendment the day after Butt made a final decision to seek judicial relief against Meta and filed this motion less than a week after Meta responded. (Wang Decl., ¶¶ 7–10.) No trial date has been set, and Meta has not conducted nor responded to any discovery. Meta nonetheless contends that Burjanec was not diligent, arguing that he should have moved to add Butt *against his will* before Butt had decided to sue. (Opp., at p. 10:25-26.) This argument may be dismissed out of hand. Meta also argues that Butt was not diligent, because he should have filed a lawsuit immediately upon accrual of his claims. (*Id.*, at p. 10:23-25.) However, during the fewer than six months this lawsuit was pending before deciding to join, Butt “weighed the personal, professional, and economic consequences of litigation against an employer of Meta’s size and visibility”— such deliberation is a credible and acceptable reason for the delay. (Wang Decl., ¶ 7.)

Meta also complains of prejudice, but the only prejudice is the costs of defending against Butt’s claims — which would be greater if amendment were disallowed and Meta were to defend a separate lawsuit. It is thus not the type of prejudice warranting denial of leave to amend. Burjanec and Butt have also offered to permit Meta to supplement its currently pending motion to

compel arbitration to address Butt's claims, thereby saving any cost of filing a second motion. Accordingly, leave to file the proposed first amended complaint is **GRANTED**.

As for sanctions, Burjanec requests that Meta pay his attorney fees and costs incurred to bring this motion due to Meta refusal to stipulate. While Meta's refusal and opposition is certainly not justified, Burjanec relies solely on subdivision (a)(8) of Code of Civil Procedure, section 128 as grounds for a monetary sanction. "Clear Supreme Court authority, in *Bauguess v. Paine* (1978) 22 Cal.3d 626, 150 Cal.Rptr. 461, 586 P.2d 942, precludes an award of attorney's fees as sanctions unless specifically authorized by statute, such as by certain discovery statutes (see Code of Civil Procedure section 2034, subdivision (d))." (*Yarnell & Associates v. Superior Court* (1980) 106 Cal.App.3d 918, 921.) "[S]uch fees [can]not be awarded under the court's inherent supervisory power or under authority of Code of Civil Procedure section 128." (*Id.*, at p. 922.) Further there is no showing of compliance with the procedural requirements of Code of Civil Procedure sections 128.5 and 128.7. Accordingly, the request for sanctions is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 10

26-CIV-01031 JOSHUA WILSON, ET AL VS. ALON DESIGN AND REMODELING INC., ET AL

JOSHUA WILSON
ALON DESIGN AND REMODELING INC.

PRO SE

Attorney David Tran's Motion to be Relieved as Counsel

TENTATIVE RULING:

The motion to be relieved filed by counsel for defendant Eli Alon is **GRANTED**.

On August 11, 2026, defendant's counsel filed a notice of the court's August 4, 2026 ruling advancing the hearing of this motion to September 16, 2026 at 2:00 p.m., and filed a proof of service of the notice on Alon by email and U.S. Mail.

The proposed order must be updated to reflect any future hearings and will be effective upon the filing of the proof of service of this signed order upon the Eli Alon.

Counsel must advise the court whether they still represent the defaulted defendants Alon Design and Remodeling, Inc. and Enis Tursic.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.
